



CHAPTER vii.

An Act for incorporating and conferring powers on the A.D. 1911.
Chesham and District Gas Company and for other
purposes. [2nd June 1911.]

WHEREAS by a deed of settlement dated the twenty-eighth day of June one thousand eight hundred and forty-seven certain persons formed themselves into a company under the name of the Chesham Gas and Coke Company for the purpose of making and vending in the town and parish of Chesham in the county of Buckingham gas coke and other materials and the said company which is hereinafter referred to as "the limited company" was in the year one thousand eight hundred and eighty registered in pursuance of the Joint Stock Companies Acts 1862 to 1879 as a company limited by shares:

And whereas under the before-mentioned deed of settlement the share capital of the limited company was fixed at £2,300 divided into 230 shares of £10 each and such further sum or sums of money as might be raised by the sale of new shares or otherwise as provided by the before-mentioned deed of settlement:

And whereas the share capital of the limited company has since been increased and at present consists of--

£2,900 divided into 290 fully paid up ordinary shares of £10 each;

£6,905 divided into 1,381 fully paid up ordinary shares of £5 each;

£195 divided into 156 fully paid up ordinary shares of £1 5s. each; and

£2,000 divided into 400 fully paid up preference shares of £5 each:

[Price 2s. 3d.]

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And whereas the limited company have raised by the issue of debentures sums amounting in the whole to three thousand one hundred and fifty pounds:

And whereas the limited company acquired the lands described in the schedule to this Act and erected gasworks thereon and are now supplying gas within the town and parish of Chesham and the surrounding district:

And whereas the demand for gas in the district supplied by the limited company has increased and is increasing and other parishes and places adjacent thereto are wholly without a supply of gas:

And whereas it is expedient that the limited company should be dissolved and re-incorporated with further powers and that the Company so re-incorporated be authorised to improve and extend their works and to extend their mains and limits of supply and that additional capital should be provided for such purposes:

And whereas the objects aforesaid cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PRELIMINARY.

Short title.

1. This Act may be cited as the Chesham and District Gas Act 1911.

Incorporation of general Acts.

2. The following Acts and parts of Acts are (subject to the provisions of and so far as applicable to the purposes of this Act) hereby incorporated with and form part of this Act (namely):—

The Companies Clauses Consolidation Act 1845 (except the provisions relating to the conversion of borrowed money into capital) Part I. (relating to cancellation and surrender of shares) Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts:

The Lands Clauses Acts (except the provisions thereof with respect to the purchase and taking of lands otherwise than by agreement):

The Gasworks Clauses Acts 1847 and 1871 Provided that A.D. 1911.
section 13 of the former Act shall be read as if the words
“or any premises” were inserted after the words “private
building” and as if the words “Provided also that every
“such contract entered into by the Company shall be
“alike in terms and amount under like circumstances to
“all consumers” were added at the end of that section.

3. In this Act the several words and expressions to which Interpretation.
meanings are assigned by the Acts wholly or partially incorporated
herewith shall have the same respective meanings unless there
be something in the subject or context repugnant to such
construction :

The expression “the Company” shall mean the Company
incorporated by this Act :

The expressions “the works” “the gasworks” and “the
undertaking” shall respectively mean and include the
gasworks and works connected therewith by this Act
vested in or authorised to be continued and maintained by
the Company and any improvement and extension thereof
which they may make or construct under the powers of
this Act and the lands buildings estate right title property
privileges and effects and the undertaking of the Company
and every part thereof respectively.

LIMITS OF SUPPLY.

4. The limits of this Act for the supply of gas (hereinafter Limits of
called “the limits of supply”) shall be the parish and urban Act.
district of Chesham the parishes of Chesham Bois Latimer
Ashley Green Chartridge Lee Cholesbury and Hawridge all in
the county of Buckingham.

INCORPORATION OF COMPANY.

5. From and after the passing of this Act the limited Incorporation of Com-
company shall be dissolved and the several persons who pany.
immediately before the passing of this Act were members of
that company and all other persons who have subscribed to or
who shall hereafter become proprietors in the undertaking and
their executors administrators successors and assigns respectively
shall be and they are hereby united into a company for the
purposes hereinafter mentioned and shall be incorporated by the
name of “The Chesham and District Gas Company” and by that

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A.D. 1911. name shall be a body corporate with perpetual succession and a common seal with power to purchase take hold and dispose of lands and other property for the purposes of this Act.

General
purposes of
Company.

6. The Company shall be established for the purpose of manufacturing storing and supplying gas for lighting heating motive power and other purposes within the limits of supply and may provide produce store sell dispose of and deal in gas and coke patent fuel tar pitch asphaltum ammoniacal liquor sulphate of ammonia and all other products refuse or residuum arising remaining produced by or resulting or obtained from the manufacture of gas or the materials used therein and may manufacture and sell such articles as may be produced from or by means of the several matters and things aforesaid or any of them and may purchase and store coal oil and other materials employed in the manufacture of gas and generally may carry on any business usually carried on by gas companies and which is or may become incidental thereto.

Present
property of
limited com-
pany vested
in Company
incorporated
by this Act.

7. Subject to the provisions of this Act all the lands gasworks erections buildings rights and easements which immediately before the passing of this Act were vested in the limited company or any person in trust for them, or to which the limited company were in any wise entitled and all mains pipes plant apparatus stock effects matters and things which may have been by them purchased provided laid down erected or placed in any place or house within the limits of supply or which immediately before the passing of this Act were the property of the limited company and all moneys securities credits effects and other property whatsoever which immediately before the passing of this Act belonged to the limited company or to any trustee on their behalf and the benefit of all contracts and engagements entered into by or on behalf of the limited company and immediately before the passing of this Act in force shall be and the same are hereby vested in the Company to the same extent and for the same estate and interest as the same were previously to the passing of this Act vested in the limited company or any trustee on their behalf and may according to the provisions of this Act be held and enjoyed sued for and recovered maintained altered discontinued removed dealt with and disposed of by the Company as they think fit.

Deed of
settlement
constituting
limited

8. Subject to the provisions of this Act the deed of settlement constituting the limited company dated the twenty-eighth day of June one thousand eight hundred and forty-seven shall as to

any prospective operation thereof be wholly void and the Company and the holders of stock therein shall be exempted from all the provisions restrictions and requirements of any Act which applied to the limited company and the members thereof as such but nothing in this Act contained shall release or discharge any person from any liability or obligation in respect of any breach of the provisions of the said deed of settlement incurred before the passing of this Act but such liability or obligation in respect of any such breach shall continue and save as in this Act otherwise provided may be enforced by or on behalf of the Company as nearly as may be in like manner as the same might have been enforced by or on behalf of the limited company if this Act had not been passed.

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company to
be void.

9. Except as is by this Act otherwise expressly provided everything before the passing of this Act done or suffered by or with reference to the limited company or the members thereof as such shall be as valid as if the Company had not been incorporated and the said deed of settlement had not been avoided by this Act and such incorporation and avoidance and this Act respectively shall accordingly be subject and without prejudice to everything so done or suffered and to all rights liabilities claims and demands both present and future which if the Company were not incorporated and the said deed of settlement were not avoided by this Act and this Act were not passed would be incident to or consequent on any and every thing so done or suffered and with respect to all such rights liabilities claims and demands the Company and the holders of stock therein and the property of the Company shall to all intents and purposes represent the limited company and the members thereof as such and the property of the limited company as the case may be and the generality of this enactment shall not be restricted by any of the other sections and provisions of this Act.

Nothing to
affect pre-
vious rights
and liabilities.

10. Except as is by this Act otherwise specially provided all purchases sales conveyances grants assurances deeds contracts bonds and agreements entered into or made before the passing of this Act by to or with the limited company or any trustees or persons acting on behalf of the limited company or by to or with any other person to whose rights and liabilities they have succeeded and now in force shall be as binding and of as full force and effect in every respect against or in favour of the Company and may be enforced as fully and effectually as if

Contracts
prior to Act
to be binding.

A.D. 1911. instead of the limited company or the trustees or persons acting on behalf of the limited company the Company had been a party thereto.

Actions &c.
not to abate.

11. Nothing in this Act contained shall release discharge or suspend any action or other proceeding which was pending by or against the limited company or any member thereof in relation to the affairs of the limited company or to which the limited company or any member thereof in relation to such affairs were parties immediately before the passing of this Act but such action or other proceeding may be maintained prosecuted or continued by or in favour of or against the Company (as the case may be) in the same manner and as effectually and advantageously as the same might have been maintained prosecuted or continued by or in favour of or against the limited company or any member thereof if this Act had not been passed the Company and the shareholders therein being in reference to the matters aforesaid in all respects substituted for the limited company and its members respectively.

Indemnity.

12. Every trustee or other person in whom or in whose name any lands works buildings easements rights property or effects belonging to the limited company were vested immediately before the passing of this Act and who (being authorised so to do) entered into any bond covenant contract or engagement in respect of the same or otherwise on behalf of the limited company shall be indemnified out of the funds and property of the Company against all liability (including costs charges and expenses) which he may sustain or incur or be put unto by reason of his having entered into such bond covenant contract or engagement.

Company to
satisfy liabilities
of limited
company.

13. From and after the passing of this Act and except as is by this Act otherwise expressly provided the Company shall in all respects be subject to and shall discharge all obligations and liabilities to which the limited company immediately before the passing of this Act were subject and shall indemnify the members directors officers and servants of the limited company and their respective representatives from all such obligations and liabilities and from all expenses and costs in that behalf.

Recovery of
gas rents &c.

14. All gas rents and sums of money which immediately before the passing of this Act were due or accruing to the limited company shall be payable to and may be collected and recovered by the Company in like manner as if they had become payable for the like matters supplied or done under this Act.

15. All persons who immediately before the passing of this Act owed any money to the limited company or to any person on their behalf shall pay the same with all interest (if any) due or accruing upon the same to the Company and all debts and moneys which immediately before the passing of this Act were due or recoverable from the limited company or for the payment of which the limited company were or but for this Act would be liable shall be paid with all interest (if any) due or accruing upon the same by or be recoverable from the Company.

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As to payment of debts owing before passing of Act.

16. Notwithstanding the avoidance of the said deed of settlement all certificates (until cancelled under the powers of this Act) and all sales transfers and dispositions heretofore made or executed under them for and with respect to any shares in the limited company shall remain in full force and continue and be available in all respects as if the said deed of settlement had not been avoided.

Certificates &c. to remain in force.

17. All documents books and writings which if the said dissolution and avoidance had not taken place would have been receivable in evidence shall be admitted as evidence in all courts and elsewhere notwithstanding such dissolution and avoidance.

Books &c. continued evidence.

18. The books kept by the limited company for entering the names and designations of the members thereof shall continue to be kept for similar purposes by the Company and shall be taken and considered as the register of holders of stock required to be kept by the Companies Clauses Consolidation Act 1845 until a new register is provided by the Company.

Present register of members to be continued.

19. All officers and servants of the limited company who were in office immediately before the passing of this Act shall hold and enjoy their respective offices and employments together with the salaries and emoluments thereunto annexed until they shall resign the same or be removed therefrom by the Company and shall be subject and liable to the like conditions obligations pains and penalties and to the like powers of removal and to the like rules restrictions and regulations in all respects whatsoever as if they had been appointed under this Act.

Officers to continue until removed.

CAPITAL.

20. The capital of the Company shall be thirty-eight thousand pounds being the aggregate of the following sums:—

Capital.

- (1) Capital stock to the amount of sixteen thousand pounds being stock created in respect of the existing ordinary

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capital of ten thousand pounds of the limited company which shall be called "A ordinary stock":

- (2) Capital stock to the amount of two thousand pounds being stock created in respect of the existing preference capital of two thousand pounds of the limited company which shall be called "B preference stock":
- (3) Twenty thousand pounds in this Act called "the additional capital" which shall be raised in manner hereinafter mentioned.

Allocation of capital.

21. Upon the passing of this Act there shall be created by virtue of this Act sufficient A ordinary stock and B preference stock to give effect to this section and the Company shall issue and allocate such stock in manner following (that is to say):—

- (1) Sixteen thousand pounds of A ordinary stock shall be divided among and vested in the several persons who immediately before the passing of this Act were registered as holders of the ordinary shares of the limited company in the proportion of sixteen pounds of such stock for each ordinary share of ten pounds held by them respectively eight pounds of such stock for each ordinary share of five pounds held by them respectively and two pounds of such stock for each ordinary share of one pound five shillings held by them respectively:
- (2) Two thousand pounds of B preference stock shall be divided among and vested in the persons who immediately before the passing of this Act were registered as holders of the preference shares of the limited company in the proportion of five pounds of such stock for each preference share of five pounds held by them respectively:
- (3) All stock so created and vested under or by virtue of this Act shall be deemed to be fully paid up and shall be held in the same rights on the same trusts and subject and liable to the same powers provisions declarations agreements charges liens incumbrances and liabilities (except so far as the same may be altered or varied by this Act) as immediately before the passing of this Act affected the share or shares as the case may be in respect of which the stock so created is so vested and shall be dealt with applied and disposed of accordingly and so as to give effect to and not revoke

any agreement deed or other instrument or any testamentary disposition disposing of or affecting the same and every such agreement deed or other instrument or testamentary disposition shall take effect with reference to the whole or a proportionate part as the case may be of the stock created under or by virtue of this Act substituted therefor and trustees executors or administrators and all other holders in any representative or fiduciary capacity of any share or shares are hereby expressly authorised and required to accept any stock allocated to and vested in them pursuant to the provisions of this Act and to hold dispose of or otherwise deal with the same as they might have held disposed of or otherwise dealt with the share or shares in the capital of the limited company for which such stock created under or by virtue of this Act is substituted and are hereby indemnified in respect of all acts bonâ fide done by them in pursuance of the provisions of this Act.

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22.—(1) The Company shall call in the existing certificates of shares in the limited company and issue in exchange for those certificates to the respective proprietors thereof free of charge certificates for the stock to which those proprietors are by this Act respectively entitled.

Certificates of shares to be called in and others issued.

(2) No shareholder of the limited company shall be entitled to a new certificate until he shall have delivered up to the Company to be cancelled the existing certificate for which such new certificate is to be substituted or shall have proved to the reasonable satisfaction of the directors of the Company the loss or destruction thereof and shall have given such guarantee or indemnity as the Company may require.

(3) Until the issue of such new certificates the existing certificates shall (according to the amounts of A ordinary stock and B preference stock to be substituted by virtue of this Act for the shares in the capital of the limited company which they respectively represent) have and confer the same rights and advantages as if they were certificates for the respective amounts of A ordinary stock or B preference stock created by virtue of this Act.

(4) If any holder of shares in the capital of the limited company neglects or omits to send or deliver to the Company his existing certificate or certificates for the period of one year after

A.D. 1911. notice in writing sent by post to the address appearing in the shareholders' address book of the limited company the Company may suspend the payment of any dividend declared or made payable upon or in respect of the stock substituted under the provisions of this Act for the shares so held by him until such existing certificate or certificates is or are sent or delivered to the Company or is or are proved to the reasonable satisfaction of the directors of the Company to have been lost or destroyed.

(5) On the issue of any certificate of A ordinary stock or B preference stock the certificate or certificates for which it is substituted shall be cancelled.

Transfers of shares although by present name to be valid.

23. All transfers or other dispositions of shares in the capital of the limited company shall after the substitution therefor of A ordinary stock or B preference stock as the case may be and notwithstanding this Act be valid and have due effect given to them respectively as transfers for the respective amounts of A ordinary stock and B preference stock which the shares thereby expressed to be transferred or disposed of represent or which are or may be substituted for the same under the provisions of this Act although the instrument transferring or disposing thereof shall describe the same by the name or denomination which the shares transferred or disposed of had before such substitution and the bequest of or any covenant or provision of any deed or agreement relating to any such shares shall be held to apply to the nominal amount of A ordinary stock or B preference stock equal to that for which such shares shall have been substituted under the provisions of this Act.

Stock to be transferable in multiples of one pound.

24.—(1) All stock of the Company shall be issued and shall be transferable only in amounts of one pound or multiples of one pound but so that the holding of any stockholder shall not be reduced below an amount of five pounds of stock Notice of the effect of this enactment shall be stated in all certificates of such stock.

(2) Sections 18 to 20 of the Companies Clauses Consolidation Act 1845 shall be deemed and construed to include and apply to all stock created and issued under the provisions of this Act and to the dividends thereon as if such stock and dividends respectively had been expressly named in the said sections.

Power to Company to raise additional capital.

25. The Company may from time to time raise additional capital not exceeding in the whole twenty thousand pounds by the creation and issue at their option of further A ordinary stock

or new preference stock or partially by one or other of those modes Provided that it shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of additional capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of twenty thousand pounds Provided also that the Company shall not raise by the issue of preference stock a greater amount of such additional capital than twelve thousand pounds.

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26.—(1) Subject to the provisions of this Act all stock created under the powers of this Act shall be issued in accordance with the provisions of this section.

New stock to be sold by auction or tender.

(2) All stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine Provided as follows:—

(A) Notice of the intended sale shall be given in writing to the clerk of each urban or rural district council whose district or any part thereof is within the limits of supply and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply:

(B) A reserve price shall be fixed and notice thereof shall be sent by the Company in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be:

(C) No lot offered for sale shall comprise stock of greater nominal value than one hundred pounds:

(D) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum and in the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid:

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(E) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Company within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any stock which has been so offered for sale and is not sold may be disposed of by the directors at a price not less than the reserve price put upon the same for the purpose of sale by auction or tender or may be offered at the reserve price to the holders of stock of the Company in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employees of the Company and to the consumers of gas supplied by the Company in such proportions as the Company may think fit or to one or more of these classes of persons only. Provided that in the case of an offer to holders of stock if the aggregate amount of stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any stock which has been offered in accordance with subsection (2) or with subsections (2) and (3) and is not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Company shall send a report thereof to the Board of Trade stating the total amount of each class of stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for each class of stock.

Privileges
&c. of
holders of
additional
capital.

27. Except as is otherwise by this Act provided all additional capital created by the Company under this Act shall be part of the general capital of the Company and the new stock therein and the holders thereof respectively shall be entitled to the like rights of voting and any other powers rights and privileges in proportion to the amount of their stock and shall be subject to the like provisions and liabilities in all respects as if the stock in the additional capital were part of the stock issued under this Act in substitution for shares in the limited company.

BORROWING POWERS.

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28. The Company may subject to the provisions of this Act borrow on mortgage of the undertaking any sum or sums not exceeding in the whole (inclusive of the sum of three thousand one hundred and fifty pounds already borrowed by the limited company) one-third part of the amount of the capital of the Company which at the time of borrowing has been created or raised under the powers or in pursuance of the provisions of this Act but no sum shall be borrowed in respect of any capital so created or raised until the Company have proved to a justice of the peace before he gives his certificate under the fortieth section of the Companies Clauses Consolidation Act 1845 that the whole of the stock at the time issued together with the premium (if any) realised on the sale thereof has been fully paid up.

Power to borrow.

29. All mortgages and bonds granted by the limited company before and subsisting at the passing of this Act shall during the continuance of such mortgages and bonds and subject to the terms thereof have priority over any mortgages or debenture stock granted or created and issued by virtue of this Act but nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Company.

Existing mortgages to have priority.

30. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest on all debenture stock and on all mortgages at any time after the passing of this Act created and issued or granted by the Company under this or any subsequent Act and affecting the undertaking shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

Debenture stock.

31. All money raised by the Company on mortgage or by the issue of debenture stock under the provisions of this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by the

Priority of mortgages and debenture stock over other debts &c.

A.D. 1911. Company after the passing of this Act but this priority shall not affect any claim against the Company or their property in respect of any rentcharge to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to or vested in the Company which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock.

For appointment of a receiver.

32. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than two thousand pounds in the whole.

DIVIDENDS &c.

Limitation of profits.

33. Except as is by this Act provided the profits of the Company to be divided among the holders of A ordinary stock of the Company in any year shall not exceed the rate (in this Act referred to as "the standard rate of dividend") of five pounds per centum per annum and the profits of the Company to be divided among the holders of preference stock shall not exceed the rate of five pounds per centum per annum but the Company may create and issue any part of the new preference stock which they are by this Act authorised to create and issue with any other rate of dividend being less than five per centum per annum as they may determine.

Dividend on preference stock to be paid proportionately.

34. In case in any year the funds of the Company applicable to the payment of dividends shall be insufficient to pay the full amount of the dividend on the preference capital a proportionate reduction shall be made in the dividend payable on each class of preference stock.

Interim dividend.

35. The directors may in any year without calling a meeting of stockholders for the purpose declare and pay an interim half-yearly dividend out of the then ascertained profits of the Company. Provided that no such interim dividend shall exceed one half of the amount of the authorised rate of dividend.

Closing of transfer books previous to de-

36. The directors may close the register of transfers for a period not exceeding fourteen days previous to a declaration of any interim dividend and they may fix a day for closing the

same of which seven days' notice shall be given by advertisement in some newspaper published or circulating in the district within which the Company's principal place of business is situate and any transfer made during the time when the transfer books are so closed shall as between the Company and the person claiming under the same but not otherwise be considered as made subsequently to the declaration of any such dividend.

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—
declaring in-
terim divi-
dend.

SPECIAL PURPOSES AND RESERVE FUNDS.

37.—(1) The directors of the Company may if they think fit in any year appropriate out of the revenue of the Company as part of the expenditure on revenue account any sum not exceeding an amount equal to one per centum of the paid-up capital of the Company including premiums thereon to a fund to be called "the special purposes fund."

Power to
create a
special pur-
poses fund.

(2) The special purposes fund shall be applicable only to meet such charges as a chartered accountant or an incorporated accountant being an auditor of the Company or appointed for the purpose by the Board of Trade shall approve as being—

(A) Expenses incurred by reason of accidents strikes or circumstances which due care and management could not have prevented; or

(B) Expenses incurred in the replacement or removal of plant or works other than expenses requisite for the ordinary maintenance and renewal of plant and works.

(3) The maximum amount standing to the credit of the special purposes fund shall not at any time exceed an amount equal to one-tenth part of the paid-up capital of the Company including premiums thereon.

(4) The moneys representing the special purposes fund or any portion thereof may be invested in securities in which trustees are authorised by law to invest money or may be applied for the general purposes of the Company to which capital is properly applicable or may be used partly in the one way and partly in the other.

(5) Resort may from time to time be had to the special purposes fund notwithstanding that the sum standing to the credit of the fund is for the time being less than the maximum allowed by this section.

38. If the clear profits of the undertaking of the Company in any year amount to a larger sum than is sufficient to pay

Application
of excess of
profits over

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A.D. 1911. the dividend on the preference capital and the dividend at the authorised rates of dividend. the authorised rate on the ordinary capital of the Company the excess shall be carried to the credit of the profit and loss (net revenue) account of the undertaking for the next following year provided that the sum standing to the credit of such profit and loss (net revenue) account to be carried forward to the next following year shall not at any time exceed the amount required to pay one year's dividend at the authorised rates on the ordinary and preference capital of the Company.

Power to create a reserve fund.

39. Where in any year the dividend which may be paid by the Company on the A ordinary stock shall exceed the standard rate by reason of the price charged by the Company for gas in such year being below the standard price then out of the amount of the divisible profits of the Company applicable to the payment of such excess of dividend the Company may in such year set apart such sum as they shall think fit and all sums so set apart by the Company and any reserve or other fund of the limited company existing at the passing of this Act may be invested in Government or other securities and the dividends and interest arising from such securities may also be invested in the same or the like securities in order that the same may accumulate at compound interest and the fund so formed shall be called "the reserve fund" and shall be applicable to the payment of dividend in any year in which the clear profits of the Company shall be insufficient to enable the Company in such year to pay the dividend at the authorised rate on the A ordinary stock and save as in this Act provided no sum shall in any year be carried by the Company to any reserve fund.

MEETINGS.

First ordinary meeting.

40. The first ordinary meeting of the Company shall be held within six months after the passing of this Act and the subsequent ordinary meetings shall be held in the month of February or March in each year at the Company's principal office or at such other place and at such other time as shall be appointed for that purpose by an order of the directors.

Quorum for general meetings.

41. The quorum for all general meetings of the Company shall be seven stockholders present in person or by proxy holding in the aggregate not less than one twentieth of the issued capital of the Company.

42. The prescribed scale of voting shall be one vote for every complete five pounds of A ordinary stock or preference stock.

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Scale of
voting.

DIRECTORS AND AUDITORS.

43. The number of directors shall be six but the Company may reduce the number provided that the number be not at any time less than four.

Number of
directors.

44.—(1) The qualification of a director shall be the possession in his own right of stock of the Company to the nominal amount of not less than two hundred pounds.

Qualification
of directors.

(2) If any director shall be made bankrupt or shall go to reside abroad or shall become lunatic or of unsound mind or shall neglect to attend the meetings of directors for six months (unless such neglect to attend be occasioned by illness or any other reasonable cause allowed by the directors) then in any of the cases aforesaid the office of such director shall become vacant and thenceforth he shall cease from voting or acting as a director.

(3) The continuing directors may act notwithstanding any vacancy in the number of directors.

45. The quorum of a meeting of directors shall be three.

Quorum of
directors.

46. John Hayes James Herbert Thomas Edmonds Sanders George Webb Henry George Webb and Jesse Newman Wilson shall be the first directors of the Company and shall continue in office until the first ordinary meeting held after the passing of this Act At that meeting the stockholders present in person or by proxy may either continue in office the directors appointed by this Act or any of them or may elect a new body of directors or directors to supply the place of those not continued in office the directors appointed by this Act being (if they continue qualified) eligible for election and at the ordinary meeting to be held in every year after the first ordinary meeting the stockholders present in person or by proxy shall (subject to the power hereinbefore contained for varying the number of directors) elect persons to supply the places of the directors then retiring from office agreeably to the provisions of the Companies Clauses Consolidation Act 1845 and the several persons elected at any such meeting being neither removed nor disqualified nor having died or resigned shall continue to be directors until others are duly elected in their stead.

First and
subsequent
directors.

A.D. 1911.
Auditors.

47.—(1) The prescribed number of auditors shall be one unless the number be increased to two by an order of a general meeting and such auditor or auditors shall be a member or members of the Institute of Chartered Accountants or of the Society of Incorporated Accountants and Auditors.

(2) It shall not be necessary for any auditor to hold any stock in the Company.

WORKS AND LANDS.

Powers as to
construction
and mainten-
ance of gas-
works &c.

48. Subject to the provisions of this Act the Company may upon the lands described in the schedule to this Act continue maintain alter improve enlarge extend and renew or discontinue the gasworks of the limited company and may upon those lands or any part thereof erect maintain alter improve enlarge extend and renew or discontinue additional and other gasworks retorts gasholders drains sewers mains pipes machinery and other works and apparatus and conveniences and may do all such acts as they may think proper for making and storing gas and for supplying gas for public or private purposes in bulk or otherwise for lighting heating motive power or other purposes within the limits of supply and for the conversion utilisation and distribution of materials used in and about the manufacture of gas and of residual products resulting from such manufacture and may make store and supply gas accordingly and the Company may manufacture sell provide and deal in coke patent fuel tar pitch asphaltum ammoniacal liquor sulphate of ammonia oil and all other refuse or residuary products arising remaining produced by or obtained from the manufacture of gas by them or the materials used therein and may manufacture produce and sell such articles as can be produced from and by means of the several matters and things aforesaid.

Power to
purchase
lands by
agreement.

49. The Company may for the purposes of their undertaking purchase take and hold (by agreement but not otherwise) in addition to the lands described in the schedule to this Act any lands and hereditaments not exceeding in the whole five acres which the Company may require for the purposes of their works and undertaking but the Company shall not create or permit a nuisance on any such lands and no lands shall be used by the Company for the purpose of manufacturing gas or residual products except the lands described in the schedule to this Act.

50. Subject to the provisions of the Lands Clauses Consolidation Act 1845 the Company may sell and dispose of or may let on lease for such periods as they may think fit any lands for the time being belonging to them and which may not at the time be required for the purposes of their undertaking and may retain and hold sell and dispose of any interest in or reversion to any lands so let and any such sale disposal or lease may be for such consideration and subject to such reservations stipulations restrictions and provisions and generally upon such terms and conditions as the Company may think fit.

A.D. 1911.

Power to sell and lease lands.

51. The Company may lay down place repair alter remove and renew mains pipes culverts and other apparatus within the limits of supply for the purpose of procuring conducting or disposing of any oil or other material used by them in or resulting from the manufacture of gas or any residual products thereof or for any other purpose connected with their business and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when so laid so far as applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

Power to lay pipes &c. for purposes ancillary to business of Company.

52. The Company may upon the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street laid out but not dedicated to public use supply such premises with gas and for that purpose the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes so far as the same are applicable for and not inconsistent with the purposes of this section shall apply as if the street were a street within the meaning of that Act Provided that the local authority of the district within which such street is situate shall for the purposes of the said Act be deemed in addition to any other person to be persons having the control or management of such street.

Power to lay pipes in streets not dedicated to public use.

53.—(1) Whenever the Company in exercise of the powers of this Act require to execute any work over under or within five feet of any main pipe or apparatus belonging to the Rickmansworth and Uxbridge Valley Water Company (in this section referred to as "the water company") or whenever the water company in the exercise of their statutory powers require to execute any work over under or within five feet of any main

For protection of Rickmansworth and Uxbridge Valley Water Company.

A.D. 1911. pipe or apparatus of the Company the Company or the water company as the case may be (in this section referred to as "the operators") shall unless otherwise agreed between the parties interested give to the water company or to the Company as the case may be (in this section referred to as "the owners") not less than twenty-four hours' notice before commencing to execute any such work as aforesaid except in cases of emergency and then so soon as is possible after the beginning of the work or the necessity for the same shall have arisen and the owners shall be entitled by their officer to superintend the work and the operators shall conform with such reasonable requirements as may be made by the owners or such officer for protecting from injury every such main pipe or apparatus and for securing access thereto and shall also if required so to do by the owners thereof repair any damage that may be done thereto whether directly or by disturbance of the ground wherein the same is laid or by subsequent settling of the said ground or by any other means whatsoever.

(2) Where the operators find it necessary to undermine any such main pipe or apparatus they shall temporarily support the same in position during the execution of their works and before completion provide a suitable and proper foundation for the same where so undermined.

(3) If the operators make default in complying with any of the requirements or restrictions of this section they shall make full compensation to the owners affected thereby for any loss damage penalty or costs which they may incur by reason thereof.

(4) Any question or difference which may arise between the Company and the water company under this section shall be determined by an arbitrator to be appointed on the application of either party by the Board of Trade and the provisions of the Arbitration Act 1889 shall apply to any such reference to arbitration.

For protec-
tion of Ches-
ham Urban
District
Council.

54. Notwithstanding anything contained in this Act or any enactment incorporated therewith the following provisions for the protection of the Chesham Urban District Council (in this section referred to as "the council") shall unless otherwise agreed between the Company and the council have effect:—

(1) The Company shall not permit any trench made by them in any street for the time being maintainable by the

council to be open for more than fifty yards in length at any place where only one cart can pass at the side of such trench or for more than one hundred yards in length at any place where only two carts can pass at the same time: A.D. 1911.

- (2) Where any pipe main apparatus or work of the Company (all of which are in this section included in the expression "the works of the Company") is required to be laid or constructed beneath the surface of the roadway of any such street as aforesaid the same shall if possible be laid or constructed at such a depth not exceeding two feet six inches below the surface of such street as the council may reasonably direct. Any difference as to the possibility of so laying or constructing any of the works of the Company or as to the reasonableness of any such direction shall be determined by arbitration as hereinafter in this section provided:
- (3) The council shall not be liable for or in respect of any damage or injury done to any of the works of the Company by reason of such work being laid at a depth below the surface of any such street insufficient for its protection from injury arising from the reasonable use by the council of any steam roller not exceeding fifteen tons in weight:
- (4) Any difference by this section required to be determined by arbitration shall be determined by an engineer to be appointed (in default of agreement between the parties) by the President of the Institution of Civil Engineers on the application of either party and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

SUPPLY PRICE AND TESTING OF GAS.

55. The price to be charged by the Company for gas supplied by them by ordinary meter shall be three shillings and ninepence per one thousand cubic feet within a radius of three miles from the existing Town Hall at Chesham (in this Act called "the inner area") such price being in this Act referred to as "the standard price" and the price to be charged by the Company for gas supplied by them by ordinary meter in any other part of the

Dividend
dependent
on price
charged.

A.D. 1911. limits of supply (such other part being in this Act called "the outer area") shall not at any time exceed the price charged in the inner area by more than one shilling per one thousand cubic feet but the Company may at any time charge in any part or parts of the outer area a price or prices lower than the price or prices charged in any other part or parts of the outer area. Provided that such lower price or prices shall not be less than the price for the time being charged within the inner area:

Provided that the Company may increase or reduce the price charged by them for gas above or below the standard price subject to a reduction or increase in the dividend payable by the Company on the A ordinary stock as follows:—

In respect of any year during any part of which the price charged by the Company shall have been one penny or part of a penny above the standard price the dividend payable by the Company shall in respect of each penny or part of a penny by which the standard price shall have been increased be reduced below the standard rate of dividend by two shillings and sixpence on every one hundred pounds of A ordinary stock and so in proportion for any fraction of one hundred pounds;

And in respect of any year during the whole of which the price charged by the Company shall have been one penny or more below the standard price the dividend payable by the Company may in respect of each penny by which the standard price shall have been reduced be increased above the standard rate by two shillings and sixpence on every one hundred pounds of A ordinary stock and so in proportion for any fraction of one hundred pounds:

Provided also that if in any year the dividends payable shall comprise a fractional amount less than one quarter per centum the directors of the Company may defer the payment of such fractional amount until the payment of the next or some succeeding dividends and shall in their discretion either add such fractional amount to and pay the same with such succeeding dividends accordingly or add the same to the reserve fund.

Charge for
gas supplied
by means of
prepayment
meters.

56.—(1) The Company may demand for any gas supplied through a prepayment meter any charge not exceeding the charge for gas supplied to ordinary private consumers within the same part of the limits of supply through any other kind of meter or by any other method of supply.

(2) The Company shall not charge for the hire of any prepayment meter and fittings to be used therewith any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meter and the maximum sum to be so charged shall be at the rate of tenpence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith or at the rate of one shilling per one thousand cubic feet if such fittings include a cooking stove : A.D. 1911.

The said charge shall include the providing letting fixing repairing and maintenance of the meter and fittings and the cost of collection and other costs incurred by the Company in connection with the meter and fittings.

(3) The maximum charge for the hire of a prepayment meter without fittings shall be at the rate of ten per centum per annum on the cost of the meter.

(4) For the purpose of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor through or by means of such meter or appliance.

57. The prescribed number of candles shall be not less than fourteen. Quality of gas.

58. For the purposes of the Gasworks Clauses Act 1871 the prescribed testing place shall be a testing place which shall be provided by the Company on the lands described in the schedule to this Act within three months after the passing of this Act. Testing place.

59.—(1) The quality of the gas supplied by the Company shall with respect to its illuminating power be such as to produce at the testing place when burned at the rate of five cubic feet per hour a light equal in intensity to the light produced by fourteen sperm candles of six to the pound each consuming one hundred and twenty grains of sperm per hour and shall be in all respects in accordance with the provisions of the Gasworks Clauses Act 1871. Testing quality.

(2) For testing the illuminating power of the gas the burner to be used shall be that known as the Metropolitan Argand No. 2 the photometer shall be the bar photometer or the table photometer the standard light shall be that supplied by Harcourt's ten-candle Pentane lamp and in making the test the burner shall be so used as to obtain from the gas when burned at the rate

A.D. 1911. aforesaid the greatest amount of light Provided that the Board of Trade may on the application of the Company or the local authority approve the use of any other burner photometer or standard light which may appear to the Board to be equally or more suitable for the testing.

(3) The Company shall within three months after the passing of this Act provide all the apparatus required by this Act for the testing of gas and shall at all times keep the same in proper order and repair.

Pressure of gas.

60.—(1) All gas supplied by the Company to any consumer of gas shall be supplied at such pressure as to balance a column of water not less than eight tenths of one inch in height at the main or as near as may be to the junction therewith of the service pipe supplying the consumer.

(2) Any gas examiner appointed under the Gasworks Clauses Act 1871 may for the purposes of this Act subject to the terms of his appointment at the testing place or at any public lamp as and when he thinks fit test the pressure at which the gas is supplied The Company shall afford to the examiner all reasonable facilities for making the test and two hours' previous notice in writing shall be given to the Company of the time and place at which any such test will be made.

Saving as to penalties.

61. No penalty shall be incurred by the Company for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which it is proved that such insufficiency defect or excess was produced by any circumstance beyond the control of the Company Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Company.

As to construction and placing of pipes &c. between mains and meters.

62. In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

(1) The Company may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer either in the first instance or on the occasion of any renewal between the Company's mains and the meter and (so far as the same are intended to be covered over) on the consumer's premises:

(2) The Company may if they think fit make different specifications for different classes of premises having

regard to the probable maximum consumption of gas thereon at any one time: A.D. 1911.

- (3) The specification shall be published twice in some newspaper circulating within the limits of supply and a copy of such specification shall be kept exhibited in the office of the Company:
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connection with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Company's main but within the outside wall of the building:
- (5) When any such pipes or meters have been laid or placed notice thereof shall be given to the Company and the pipes shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Company. Any officer of the Company duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Company's specification or if the meters are not placed as required by this section the Company may refuse to supply gas to the premises until the provisions of this section have been complied with:
- (6) Any person to whom the Company refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Company's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

63.—(1) The Company may sell let for hire fix repair and remove but shall not manufacture engines stoves ranges pipes and other fittings for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food

Power to supply fittings &c. for heating and other purposes.

A.D. 1911. and for all other purposes for which gas can or may be used and may provide all materials and do all work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon.

(2) Subject as hereinafter provided any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of any court or proceedings in bankruptcy against the persons in whose possession the same may be and all fittings let for hire as aforesaid shall notwithstanding that they be fixed or fastened to any part of any premises in which they may be situate or to the soil under any such premises at all times continue to be the property of and removable by the Company.

(3) The Company shall only be entitled to the privileges and exemptions conferred by this section in respect of such fittings as are marked or impressed with a sufficient mark or brand indicating the Company as the actual owners thereof.

Consumers
give notice
to Company
before re-
moving.

64. At least twenty-four hours notice in writing shall be given to the Company by every gas consumer before he shall quit any premises supplied with gas by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur. Notice of the effect of this enactment shall be endorsed upon every demand note for gas charges payable to the Company.

Power to
refuse supply
to persons in
debt for
other pre-
mises.

65. If a person requiring a supply of gas from the Company for any premises occupies or has previously occupied other premises at which gas is being or has been supplied to him by the Company and has not paid all gas charges and meter rent due from him to the Company they may refuse to furnish to him a supply of gas until he pays the same.

Notice to
discontinue
supply.

66. A notice to the Company from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Company.

67. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas charges are recoverable by the Company.

A.D. 1911.

Period of error in defective gas meters.

68. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an effective anti-fluctuator together with an effective non-return valve and shall at all times and at his own expense keep such anti-fluctuator and valve in proper repair and in default of his so using or keeping such anti-fluctuator and valve in proper repair the Company may cease to supply gas to such consumer. The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator and valve at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator and valve be found in proper order but otherwise at the expense of the consumer.

Anti-fluctuators for gas engines.

69. The power to enter premises and to remove pipes meters fittings or apparatus conferred upon the Company by section 22 of the Gasworks Clauses Act 1871 shall extend to all cases in which any person entering into occupation of any premises previously supplied with gas by the Company shall not require to take a supply of gas from the Company or to hire from the Company all or any of the pipes meters fittings or apparatus belonging to the Company and let by them on hire to any former occupier of such premises.

Power to enter premises and remove fittings.

70. The Company may contract with any local authority company or person authorised to supply gas under parliamentary powers in any district adjacent to the limits of supply for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as may be agreed upon but nothing in this section shall authorise the Company to lay any mains or interfere with any street beyond the limits of supply.

Company may contract with local authority &c. for supply in bulk.

A.D. 1911.

MISCELLANEOUS.

Application
of moneys.

71. All moneys raised under this Act including premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise by way of premium from the issue of stock under the provisions of this Act shall not be considered as part of the capital of the Company entitled to dividend.

Receipt in
case of per-
sons not sui
juris.

72. If any money is payable to a stockholder or mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Company to
pay interest
on money de-
posited as
security for
gas meter
&c.

73. If any person is required by the Company to give to them security for any supply of gas or for the payment of the price or rent of a meter and such security is made by way of deposit the Company shall pay interest at the rate of four pounds per centum per annum on every sum of ten shillings deposited by way of such security for every six months during which the same remains in their hands as security.

Power to
take licences
for use of
patents.

74. The Company may acquire take and use any leave licence or authority to work use exercise and put in practice any invention under letters patent made or to be made granting any right or privilege of working using exercising or vending any invention in relation to the production manufacture utilisation or distribution of gas or materials employed in or resulting from the manufacture of gas or any residual products thereof but not so as to acquire any exclusive right to the working using exercising or putting in practice of any such invention.

Dwelling-
houses for
workmen.

75. The Company may purchase or take on lease houses cottages and buildings for persons in their employ and offices show rooms and other buildings for the purposes of their undertaking and may erect fit up maintain and let any of such buildings upon any lands for the time being belonging or leased to the Company.

Power for
directors to
determine
remuneration
of secretary.

76. In addition to the powers which the directors may exercise under the Companies Clauses Acts 1845 to 1889 they may from time to time determine the remuneration of the secretary of the Company.

Recovery of
demands.

77. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the

demand does not exceed the amount recoverable in that court in a personal action. A.D. 1911.

78. Any notice to be served by the Company on a person supplied with gas shall be sufficiently authenticated by the signature of the secretary or other officer of the Company for the time being authorised in writing by the directors being affixed thereto in writing or by a stamp or if it be a notice to pay any charge in respect of a supply of gas or of fittings or appliances by the name either of the secretary or such other officer as aforesaid being affixed thereto in print or by a stamp and any such notice may be served on such person either personally or by sending the same through the post by a pre-paid letter addressed to him by name at his last known or usual place of abode or of business or by delivering the same to some inmate at his last known or usual place of abode or business or to any inmate of the premises supplied or if such premises be unoccupied and the place of abode of the person to be served is after proper inquiry unknown it shall in the case of any notice not being a notice to pay any charge be sufficient to affix such notice or a copy thereof upon some conspicuous part of such premises.

Authentica-
tion and
service of
notices.

79. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Recovery of
penalties.

80. The Company shall deliver to the Registrar of Joint Stock Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty Every penalty under this section shall be recoverable summarily.

Copy of Act
to be re-
gistered.

There shall be paid to the registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies (Consolidation) Act 1908 on

A.D. 1911. registration of any document other than a memorandum or the abstract required to be filed with the registrar by a receiver or manager or the statement required to be sent to the registrar by the liquidator in a winding up in England.

Provisions as
to purchase
of under-
taking by
Chesham
Urban Dis-
trict Council.

81.—(1) If the Chesham Urban District Council (in this section called “the council”) shall introduce in the next session of Parliament a Bill for an Act to empower them to purchase the undertaking of the Company and shall bonâ fide promote the same the Company shall not oppose such Bill except in so far as may be necessary in order to secure the insertion therein of provisions to protect their interests with respect to such purchase and for that purpose the Company shall be at liberty to petition either or both Houses of Parliament and to appear on such petition by counsel agents and witnesses if they think fit.

(2) If the council obtain such an Act they shall give to the Company a written notice within three months after the passing of such Act of their intention to purchase and thereupon the Company shall sell and transfer and the council shall purchase and acquire the undertaking of the Company subject to all their then existing obligations and liabilities.

(3) Any such sale and purchase shall be for such price and consideration and on such terms and conditions as may be agreed upon between the Company and the council or as failing such agreement shall be determined by arbitration in accordance with the provisions of the Lands Clauses Acts with reference to the purchase and taking of lands otherwise than by agreement and in the construction of the said provisions the expression “the promoters of the undertaking” shall mean the council and the expression “lands” shall mean the undertaking of the Company but any arbitrator or umpire (as the case may be) shall not in assessing the sum to be paid by the council to the Company have regard to the fact that the Company have obtained this Act.

(4) In addition to the sum to be paid by the council to the Company under the foregoing provisions of this section the council shall pay to the Company all the costs charges and expenses incurred by the Company (A) preliminary to and of and incident to the promotion of and obtaining this Act (B) relating to the transfer of the undertaking and (C) relating to the winding up of the Company all such costs charges and expenses to be taxed as between solicitor and client if so required.

(5) The council shall also pay compensation to any officers and servants in the regular employment of the Company who shall not be retained by the council in the same or similar office or employment and at the salary and on the terms and conditions in at and on which they respectively were employed by the Company on the first day of January one thousand nine hundred and eleven in respect of any loss of office or diminution of salary or income by reason of the transfer of the undertaking of the Company to the council the amount of such compensation in default of agreement to be determined by arbitration as aforesaid and no officer or servant who has been in the employment of the Company for ten years or upwards shall lose his right to compensation aforesaid by reason of his declining to continue in the service of the council.

(6) The Company shall not except with the consent of the council save as hereinafter provided raise any capital in pursuance of this Act previously to the twentieth day of November one thousand nine hundred and eleven and if the council shall give notice of such Bill as aforesaid in October or November one thousand nine hundred and eleven the Company shall not except with such consent as aforesaid or save as hereinafter provided raise any capital in pursuance of this Act during the promotion of such Bill but the Company may carry on their undertaking as heretofore in the ordinary course of their business.

(7) Notwithstanding anything to the contrary in this Act contained the Company shall be entitled at any time after the passing of this Act to raise for the ordinary purposes of their undertaking a sum not exceeding two thousand five hundred pounds by the creation and issue of preference capital and by temporarily borrowing or either of those means.

(8) For the purposes of this section the expression "the undertaking of the Company" includes all the gasworks engines mains pipes and machinery lands and buildings plant fixed and moveable and other property and all the rights powers and privileges vested in or belonging to or had or enjoyed by the Company at the date of transfer of the undertaking of the Company to the council save and except—

- (i) The cash balances (other than consumers' deposits) in the Company's hands or in those of their bankers or agents securities for money and all sums standing to the credit of their reserve fund and all undivided

A.D. 1911.
—

profits (all of which shall be retained by the Company) and also except moveable stock-in-trade gas coal and other stores which shall be purchased by the council by valuation at the date of transfer:

- (ii) All the rents and profits and all book and other debts received or due to the Company on credit or revenue account and all rates accrued due on the date of the transfer and the books and papers relating exclusively to the stockholders in and the constitution of the Company.

Costs of Act.

82. All the costs charges and expenses of and incident and preliminary to the preparing and applying for obtaining and passing of this Act and otherwise in relation thereto shall be paid by the Company and may in whole or in part be charged against revenue.

The SCHEDULE referred to in the foregoing Act. A.D. 1911.

LANDS FOR GASWORKS.

(1) Land in the parish of Chesham in the county of Buckingham on which are erected part or some of the existing gasworks and buildings of the limited company and which contains 1 rood 3 poles and 20 yards or thereabouts bounded on the north by land belonging or reputed to belong to the trustees of the will of John Stratton Fuller Esquire on the east by land belonging or reputed to belong to the trustees of the will of William Lowndes Esquire on the south by a public footpath leading from Townfield to Prospect Terrace hereinafter referred to as "footpath (A)" and on the west by land belonging or reputed to belong to the trustees of the will of John Stratton Fuller Esquire aforesaid.

(2) Land in the said parish of Chesham on which are erected part or some of the existing gasworks and buildings of the limited company and which contains 2 roods 11 poles and 28 yards or thereabouts bounded on the north partly by the footpath (A) aforesaid and partly by land belonging or reputed to belong to the trustees of the will of William Lowndes Esquire on the east by a private road belonging or reputed to belong to the trustees of the will of William Lowndes Esquire on the south partly by a public footpath hereinafter referred to as "footpath (B)" leading from the footpath (A) aforesaid to a public road called Waterside otherwise London Road and partly by the aforesaid Waterside and on the west and south-west by the footpath (B).

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